

The *Barnes* court held the identity of that family doctor was reasonably calculated to lead to the disclosure of discoverable information, such as other persons who might have knowledge of a pre-existing condition which was the cause of plaintiff losing her hair, rather than the use of defendant's product. (*Barnes, supra*, 163 Cal.App.2d at pp. 278-279.) The *Barnes* court went on to state, "There is no suggestion or claim that the compulsory disclosure of the names of the physicians who had treated plaintiff in the past would constitute an invasion of the physician-patient privilege, and if such a claim were made it would in any event be unavailing. [Citation.]" (*Id.* at p. 279.)

Based on the holding of *Barnes*, the Court finds Plaintiff is entitled to the identity of the medical facility where Defendant had his kidney removed.

John B. v. Superior Court (2006) 38 Cal.4th 1177 is inapposite because that case dealt with whether a wife may inquire into her husband's medical records and sexual conduct in order to confirm or refute her allegations that the husband negligently infected her with HIV. While *Hill v. National College Athletic Assn.* (1994) 7 Cal.4th 1 discussed a plaintiff's interest in the privacy of his medical treatment and information, that case did not deal with the information sought here, namely, the name of a medical provider who previously treated Defendant. Thus, neither *John B.* nor *Hill* support Defendant's contention he has an absolute right to privacy in the identity of his medical providers and medical records.

As for the relevance of the identity of the medical facility where Defendant had his kidney removed, Plaintiff alleges the prior kidney removal rendered it more likely that alcohol would linger in Defendant's bloodstream for a longer period of time, such that his decision to operate a vehicle after consuming alcoholic beverages warrants the imposition of punitive damages.

While Defendant has not himself placed his medical history, or his medical condition, at issue, Plaintiff is entitled to discovery as to the identity of the healthcare professional who performed the kidney removal, as it would reasonably assist Plaintiff with evaluating the case, with preparing for trial, and with facilitating settlement.

Thus, the Court **GRANTS** the Motion as to Special Interrogatory no. 113.

Request for Production nos. 50-52

Plaintiff seeks the production of documents related to Defendant's surveillance of Plaintiff (request nos. 50-52).

Contrary to Defendant's contention, *Suezaki v. Superior Court of Santa Clara County* (1962) 58 Cal.2d 166 does not stand for the proposition that sub rosa videos obtained by its private investigator constitute work product that is not subject to discovery. Instead, even if the subject matter involved was the work product of the attorney, the *Suezaki* court held that was merely one factor the trial court should consider, together with other relevant factors, in determining whether to deny or to grant discovery in whole or in part. (*Suezaki, supra*, 58 Cal.2d at pp. 177-178.) " '[W]ork product' of the attorney is not absolutely privileged." (*Id.* at p. 178.) Instead, it is but one factor to consider in determining whether equity and justice support its discovery. (*Ibid.*)

The California Supreme Court also concluded the plaintiff was not entitled to inspect the investigative films as a matter of law. Instead, it is up to the trial court to exercise its discretion to determine whether the moving party has established good cause for its production. (*Suezaki, supra*, 58 Cal.2d at pp. 170-171, 179.) Indeed, *Suezaki* made the following observation of the trial judge's comments on the necessity of production:

"In the present case, under the showing made, the trial court found good cause to exist. . . . [A]t several points during the oral argument the trial judge stated that he was satisfied that plaintiffs had shown a need for the films both in order to protect against surprise, and in order to prepare for examination of the person who took the pictures. Such a finding is entirely consistent with the purposes of the discovery act, and supported by the showing made."

Id. at 172. In remanding to the trial court, *Suezaki* further noted: "While it would appear that inspection of the films should be permitted, the discretion granted by the statute is the discretion of the trial court, not of this court." *Id.* at 179.

In *Southern Pac. Co. v. Superior Court* (1969) 3 Cal.App.3d 195, the court of appeal disagreed with a trial court's ruling that the plaintiff was entitled to refuse to answer four interrogatories under the conditional privilege of the work product doctrine, as the facts necessary to respond to those interrogatories were gathered by a private investigator. (*Southern Pac. Co., supra*, 3 Cal.App.3d at pp. 197, 199.) The Court of Appeal held, "[s]urprise is the only

objective of withholding these facts pending the trial. That objective is contrary to the spirit and letter of the discovery statutes.” (*Id.* at p. 199.)

In this case, Plaintiff has established good cause to be entitled to inspect any surveillance materials Defendant may have obtained.

Plaintiff should be permitted to inspect the surveillance materials in order to “assess the underlying attributes of the footage ..., whether the person depicted on the video is Plaintiff, or whether the surveillance was altered in any way – the same applies to any reports or photographs. Plaintiff must also be able to explore the foundation and authenticity of the reports, photographs, and videos. In addition, without the surveillance materials it makes it nearly impossible to meaningfully depose the investigator about his surveillance methodology and what the investigator captured on the video without being able to review the reports or video footage beforehand.”

Thus, the Court finds the surveillance materials are not protected from discovery under the work product doctrine, and it is not persuaded by Defendant’s contention that his production of a privilege log is sufficient. However, if Defendant were to stipulate to the video footage being excluded at trial (if for example, the footage appeared more favorable to the plaintiff), then good cause would be lacking and it would not be subject to production.

The Court also rejects Defendant’s contention that the term “investigative reports” is vague on its face, as Defendant’s own response to request for production no. 52 shows he understood “investigative reports” to refer to any surveillance investigation Defendant may have conducted on Plaintiff.

Defendant also contends his response to request no. 51 was code-compliant, because “the mere fact that defendant has disclosed that sub rosa on plaintiff was attempted, does not mean it was successful. If defendant indeed had sub rosa videos of plaintiff, defendant would have identified such in his privilege log.”

While Defendant seems to concede that he has no surveillance videos of Plaintiff, both his response to discovery, and his Opposition, play coy as to this point. Reviewing his responses to request for production nos. 50-52 together, it appears as if Defendant is in possession of the fruits of his surveillance investigation, yet his responses to request for production nos. 50-52 make it unclear what those materials might be. Defendant’s